

STATE OF NEW YORK

7823--A

2025-2026 Regular Sessions

IN SENATE

May 9, 2025

Introduced by Sen. HOYLMAN-SIGAL -- read twice and ordered printed, and when printed to be committed to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to authorizing the administration of immunizations pursuant to recommendations made by the commissioner of health; and to amend the public health law, in relation to removing the requirement to follow the centers for disease control and prevention recommendation for immunization against meningococcal disease

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subparagraph (e) of paragraph 2 of section 6801 of the
2 education law, as amended by section 1 of part DD of chapter 57 of the
3 laws of 2018, is amended to read as follows:

4 (e) administer the immunization or immunizations according to the most
5 current recommendations by the advisory committee for immunization prac-
6 tices (ACIP), or, in the alternative, recommendations made by the
7 commissioner of health pertaining to a vaccine that has been authorized
8 by the Food and Drug Administration, provided however, that a pharmacist
9 may administer any immunization authorized under this section when spec-
10 ified by a patient specific order.

11 § 2. Subparagraph a of paragraph 4 of section 6801 of the education
12 law, as amended by section 1 of part DD of chapter 57 of the laws of
13 2018, is amended to read as follows:

14 ~~[a-]~~ (a) a clearly visible posting of the most current "Recommended
15 Adult Immunization Schedule" published by the advisory committee for
16 immunization practices (ACIP) and any supplemental schedules published
17 by the commissioner of health; and

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

LBD11946-02-5

1 § 3. Paragraph c of subdivision 2 of section 2164 of the public health
2 law, as added by chapter 401 of the laws of 2015, is amended to read as
3 follows:

4 c. Every person in parental relation to a child in this state entering
5 or having entered seventh grade and twelfth grade or a comparable age
6 level special education program with an unassigned grade on or after
7 September first, two thousand sixteen, shall have administered to such
8 child an adequate dose or doses of immunizing agents against meningococ-
9 cal disease [~~as recommended by the advisory committee on immunization~~
10 ~~practices of the centers for disease control and prevention,~~] which
11 meets the standards approved by the United States public health service
12 for such biological products, and which is approved by the department
13 under such conditions as may be specified by the public health and plan-
14 ning council.

15 § 4. This act shall take effect immediately.